

TAURUS BARTLETT
(hereinafter “we”, “us” or “our”)
c/o The Zia Firm, PLLC
174 Fifth Ave Suite 505
New York, NY 10010
Attn: Adam Zia, Esq.

As of March 4, 2020

Anthony Catchings-Currie
p/k/a “NTYSIX”
13049 South Escanaba Ave
Chicago, IL 60633

Gentlepersons:

The following, when duly executed by the parties hereto, shall constitute our agreement (the “**Agreement**”) between Anthony Catchings-Currie p/k/a “NTYSIX” (“**you**” or “**Producer**”) furnishing his non-exclusive professional services to co-produce one (1) master recording (the “**Master**”) of the musical composition presently entitled “**Chinatown**” (the “**Composition**”) embodying the recorded performances of Taurus Bartlett p/k/a “Polo G” (“**Artist**”), for possible inclusion on an album (the “**Album**”) to be delivered by Artist to Columbia Records (“**Record Company**”) for the manufacture and distribution of records and other uses of the Master pursuant to the agreement between us and Record Company dated as of October 17, 2018, as amended from time to time (the “**Recording Agreement**”).

1. Rules of Construction: For purposes of this Agreement: **(i)** defined terms used but not otherwise defined herein shall have the meaning set forth in the Recording Agreement; **(ii)** headings are for convenience only and do not affect interpretation; **(iii)** the single includes the plural and conversely; **(iv)** a gender includes all genders; **(v)** any reference to “Schedule” or “Exhibit” herein is a reference to a Schedule or Exhibit of this Agreement and hereby incorporated herein by this reference and made a part hereof; **(vi)** the words “hereof”, “herein”, “hereunder” and similar words refer to this Agreement as a whole and not to any particular provision, unless the context clearly requires or the language provides otherwise; **(vii)** the word “including” means “including without limitation”; **(viii)** the words “shall” and “will” have the same meaning and effect; and **(ix)** reference to day or days without further qualification means calendar days.

2. Term / Services / Recording Procedure:

(a) From commencement of recording the Master, through the fulfillment of all of your obligations hereunder, including, for the avoidance of doubt, our and Record Company’s acceptance of the Master (the “**Term**”), you shall record, produce, and perform on (if applicable) (excluding so-called “specialty” mixes) the Master, pursuant to a production schedule designated by you and us (and subject to Record Company’s approval). During the Term, you shall, at all times, perform diligently, competently, and to the best of your abilities on a non-exclusive basis relating to the services rendered by you hereunder. In the event that you render services as a musician, vocalist or other performer in connection with the Master (the “**Producer Side Artist Services**”), this Agreement shall be deemed to automatically cover the Producer Side Artist Services, and you hereby acknowledge you shall not be entitled to any additional compensation for the Producer Side Artist Services other than as specifically provided for herein.

(b) You shall Deliver the Master to us on a date to be designated by us and Record Company. As it relates to sessions conducted by you, you shall perform all services customarily performed by producers in the recording industry, including, without limitation, engaging musicians, vocalists,

conductors, contractors, arrangers and copyists not otherwise engaged by us, and arranging for the use of first-class recording studios and other necessary technical facilities and personnel not otherwise engaged by us to successfully Deliver the Master to us and Record Company as set forth herein (excluding vocal production, mixing and mastering). With regard to sessions conducted by you, all job sheets, union contract forms and session report forms for recording sessions conducted by you hereunder, all bills pertaining thereto, and all payroll forms (including, without limitation, all W-4, Form Bs and other withholding tax forms) pertaining thereto shall be submitted by you to Record Company after each recording session, in accordance with all applicable union rules and other regulations so that Record Company shall be able to make any payroll payments without incurring any penalties, fines, late charges or any other costs incurred by reason of your failure to properly and timely comply with the foregoing. You shall be solely responsible for documented payment of any such penalties, fines, late charges or any other actual, verifiable, out-of-pocket costs to the extent incurred by reason of your sole acts or omissions. You shall pay or reimburse us and Record Company, upon written demand, for any sums paid by us or Record Company and any sums not promptly reimbursed by you may, at our option and without limiting our rights, be applied by us in reduction of any royalties (excluding mechanical royalties), if any, payable to you under this Agreement.

(c) The Master shall be commercially and technically satisfactory to us and Record Company. Upon our reasonable request and subject to Producer's availability, you shall cause Producer to re-record and re-edit the Master until satisfactory to us and Record Company at our sole, reasonable discretion. We and Record Company shall have the right to have our and Record Company's representatives attend each recording session conducted by you or Producer hereunder at our or Record Company's sole, non-recoupable cost and expense. As of the date hereof, we hereby acknowledge your Delivery to us and Record Company, and our and Record Company's acceptance of, a commercially and technically satisfactory Master and that no excess costs exist for which you are responsible relating to the Master hereunder; provided, however, such acknowledgment shall not estop us or Record Company from seeking any remedies available to us or Record Company at law or in equity in the event of the material breach by you or Producer of any of the warranties, representations, covenants or agreements made herein.

(d) You hereby expressly acknowledge the importance of protecting our intellectual property, including, without limitation, the Master, solely to the extent that the Master is within your control and you hereby agree to undertake any reasonable security measures necessary to ensure such protection, including, without limitation: **(i)** restricting access to the audio files or other material embodying the Master, in whole or in part, solely to essential studio personnel involved in the recording, editing or mixing of such Master; **(ii)** ensuring that no copies of the Master, in whole or in part, shall be made or distributed in any form or by any medium, including, without limitation, DJ mixtapes or CDs, file-hosting sites, and file-sharing systems, without our express prior written authorization (which may be withheld for any or no reason whatsoever); **(iii)** maintaining a locked location in which all hard drives, tapes, CDs, DVDs or other media upon which any portion of the Master is fixed shall be stored when not being actively utilized by authorized personnel in connection with the actual recording, editing or mixing of such Master; and **(iv)** promptly notifying us in the event of any actual or suspected breach of the above security measures, whether by people engaged in connection with the recording, editing or mixing of the Master or by any third-party.

(e) You hereby acknowledge that any dissemination or threatened dissemination of the Master (or any portion thereof) prior to the authorized release of a phonograph record containing such Master may result in irreparable harm and injury to us for which no adequate remedy is available at law and which is not fully compensable in money damages alone, and that we shall, in the event of any such unauthorized dissemination by you or threat by you, be entitled to seek injunctive and any other form of equitable relief as may be reasonably necessary to prevent, remedy and mitigate the adverse effects of such actual or threatened dissemination, in addition to any other legal remedies (including actual damages to which we may be entitled and the recovery of actual, verifiable court costs and documented outside attorneys' fees reasonably incurred in connection therewith); provided, however that nothing contained herein shall be

deemed to prevent you from opposing such relief. You hereby expressly agree that, without limiting any other rights or remedies we may have, we shall be entitled to seek recovery of any monies or other benefits whatsoever actually received by you (or on your behalf) from any sources in connection with any unauthorized use or dissemination by you (or on your behalf) of the Master (or any portion thereof) and that any such monies or other benefits received by you (or on your behalf) shall be held in trust by you (or on your behalf) for immediate payment to us. Paragraphs 2(d) and 2(e) are material terms hereof.

3. Rights: The Master (excluding the Composition), together with all performances embodied thereon, the services provided hereunder, and any derivative works or reproductions created therefrom shall, from the inception of creation, be considered a “work made for hire” for us within the meaning of the Copyright Act of 1976 (Title 17, U.S.C.), as amended. If it is determined that the Master does not so qualify, then such Master, together with all rights therein (including the sound recording copyright but excluding the copyright in the Composition) shall be automatically transferred and assigned to us by this Agreement. For the avoidance of doubt, without limiting the generality of the foregoing, the Master (excluding the Composition) shall be entirely our property in perpetuity, throughout the world, free of any claim whatsoever by you or by any person or entity deriving rights or interests from you, and we and Record Company (and our respective designees) shall have the exclusive unrestricted, perpetual right throughout the universe to use, distribute, sell and exploit the Master in any and all media and by any and all methods and formats now known or hereinafter devised. You shall, upon our written request, execute, acknowledge and deliver to us (and shall cause any personnel engaged by you rendering services in connection with the Master to execute, acknowledge and deliver to us) any such additional documents as we may deem reasonably necessary to evidence and effectuate our rights hereunder, and you hereby irrevocably grant to us the right as your limited attorney-in-fact solely to execute, acknowledge, deliver and record in the United States Copyright Office or elsewhere any and all such documents if you shall fail to execute the same within seven (7) business days after our request written therefor. We shall use commercially reasonable efforts to provide you with copies of any document so executed by us.

4. Budget / Recording Costs: You and we shall mutually designate a recording budget for the Master, subject to Record Company’s approval. You and we hereby acknowledge that a budget has been approved by you, us and Record Company (the “**Approved Budget**”). All Recording Costs incurred in connection with the Master shall be paid by us or Record Company. You shall be solely responsible for such actual Recording Costs incurred in excess of the Approved Budget caused by reason of your sole acts or omissions. As of the date hereof, we hereby acknowledge that there are no Recording Costs in excess of the Approved Budget for which you are responsible in connection with the Master hereunder; provided, however, such acknowledgment shall not estop us or Record Company from seeking any remedies available to us or Record Company at law or in equity in the event of the material breach by you of any of the warranties, representations, covenants or agreements made by you herein.

5. Compensation: Conditioned upon your full and satisfactory performance of all of the terms and conditions hereof, and in consideration for all rights granted to us (and our designees) and services rendered by you in connection with the Master, we shall pay (or shall instruct Record Company to pay by way of the irrevocable letter of direction attached hereto as Exhibit A (the “**Letter of Direction**”)) a producer advance in the total amount of **\$2,500** (the “**Advance**”) for the Master. The Advance shall be payable to you promptly following the later of full execution of this Agreement or the Delivery to us and Record Company of the Master. All amounts payable to you pursuant to this paragraph 5 shall be recoupable from any royalties (excluding mechanical royalties, except as otherwise provided herein) payable to you hereunder and shall be inclusive of and deemed a pre-payment of compensation for your services in connection with the Master, which shall be equivalent to the applicable minimum union scale.

6. Royalties:

(a) Provided you or Producer are not in material breach hereunder, we shall pay you a royalty (the “**Producer Royalty**”) at a basic rate (the “**Producer Basic Rate**”) of **Two Percent (2%)** of the Royalty Base Price (or if such royalties are computed on any other basis, including, but not limited to, a wholesale, retail or PPD price basis, the basic record royalty rate hereunder shall be adjusted so that the same sum in pennies shall be payable to you pursuant to the terms hereof) with respect to top-line, full priced net sales of the Album through normal retail channels in the United States (“**USNRC Net Sales**”).

(b) The Producer Royalty shall be calculated, determined, adjusted and paid (e.g., container charges, definition of Royalty Base Price, free goods, reserves, etc.) pursuant to Exhibit B, which shall be the same terms and conditions for all producers on the Album. The Producer Royalty for singles, foreign sales, mid-priced and budget sales, non-USNRC Net Sales of Albums and other exploitations of the Master shall be reduced and pro-rated pursuant to Exhibit B. With respect to records embodying the Master for which we are entitled to a percentage of Record Company’s net receipts, net royalties or the like (the “**Net Amounts**”), you shall be entitled to that proportion of the Net Amounts, determined by multiplying the Net Amounts received by us by a fraction, the numerator of which is the Producer Basic Rate (i.e., **2%**) and the denominator of which is the Artist’s unescalated all-in album royalty rate (the “**Fraction**”). Your share of video receipts, if any, shall be one-half (1/2) of the sum computed under the foregoing formula, and shall be payable on a prospective basis following recoupment of all actual, out-of-pocket video production costs in accordance with the provisions of the Recording Agreement. A copy of the relevant provisions of the Recording Agreement pertaining to the calculation of royalties hereunder is attached as Exhibit B hereto.

(c) The Producer Royalty shall not be payable to you hereunder until Record Company has recouped all actual Recording Costs (excluding any in-pocket advances paid to Artist, the Advance and any non-recording costs including, without limitation, travel, accommodations and per diem) incurred in connection with the Master at the “net artist” rate (i.e., Artist’s all-in album royalty rate less the Producer Basic Rate and the royalties payable to all third-parties). After recoupment of such actual Recording Costs as aforesaid, the Producer Royalty shall be credited and payable to you for all exploitations of the Master for which royalties are payable, retroactively from the first exploitation, subject to recoupment from such royalties of monies payable to you hereunder, including the Advance as applied to Mars.

(d) As to records not consisting entirely of the Master, the Producer Royalty shall be pro-rated by multiplying such royalty by a fraction, the numerator of which is the number of times the Master is embodied on such record and the denominator of which is the total number of royalty-bearing or fee-bearing master recordings (including the Master) embodied thereon. Notwithstanding anything to the contrary set forth herein, if the so-called “A” side or focus track of any single released by Record Company embodies the Master and the so-called “B” side thereof is a master recording produced by someone other than Producer, the Producer Royalty for such single shall not be pro-rated as aforementioned; provided, however, that if the Master produced hereunder is the so-called “B” side and another master recording not produced by Producer is the so-called “A” side or focus track and the producer of such “A” side is entitled to “A-side protection”, you shall not be entitled to any royalty hereunder in respect of such sales of such single.

(e) The Producer Royalty shall not be reduced by amounts payable to third-party mixers, remixers, producers or other royalty participants, excluding amounts reduced under paragraph 13 below.

(f) In the event that we or Artist receive or are credited with any monies from third-parties other than Record Company attributable solely to the exploitation of the Master (“**Direct Monies**” which, for the avoidance of doubt, exclude so-called “publishing monies”), we shall pay you your respective pro-rata share of such Direct Monies, determined by multiplying such Direct Monies received by or credited to us by the Fraction. In connection with the foregoing, our obligation to pay you your respective pro-rata share of so-called “SoundExchange” Direct Monies shall be satisfied by providing you with a letter of direction in the form attached as Exhibit C hereto (the “**SE Letter of Direction**”), executed by Artist

authorizing SoundExchange to render payment to you directly of Artist's pro-rata share of your appropriate share of such SoundExchange Direct Monies; provided, however, if SoundExchange or any third-party fails or refuses to so pay you directly, and we or Artist receive any portion of such SoundExchange Direct Monies attributable to you, the provisions of this Agreement regarding our accounting, audit and recovery obligations set forth below shall apply. Notwithstanding the foregoing, in the event that so-called "featured artists" are, at any time, added to the Master, we shall have the right to amend the percentages set forth in the SE Letter of Direction in order to account for Artist's pro-rata share of your appropriate share of such SoundExchange Direct Monies, and shall use reasonable efforts to obtain an executed SoundExchange letter of direction from such featured artists for their pro-rata share of your appropriate share.

7. Accounting:

(a) We shall instruct and use reasonable efforts to cause Record Company (pursuant to the Letter of Direction) to pay to you, on our behalf, royalties and other compensation payable to you hereunder. All such royalties and other compensation shall be paid at the same times as Record Company renders statements and payments to Artist pursuant to the Recording Agreement. In the event that Record Company fails or refuses to so account directly to you, we shall account for and pay all royalties and other sums shown to be due to you within thirty (30) days after we receive applicable accountings and payments from Record Company. We shall have the absolute right to rely on royalty statements received by us from Record Company and we shall not be responsible for any error, omission or other inaccuracy in any such statement.

(b) All statements and accounts rendered by us to you shall be binding upon you and not subject to any objection for any reason, unless specific objection in writing, stating the basis thereof, is given to us within three (3) years from the date such statement or accounting is rendered to you. You shall be foreclosed from maintaining any action, claim or proceeding against us, Artist or Record Company (as applicable) in any forum or tribunal with respect to any statement or accounting due to you hereunder, unless such action, claim or proceeding is commenced against us or Artist in a court of competent jurisdiction within three and one-half (3.5) years after the date such statement or accounting is so rendered.

(c) You shall have the right to appoint a certified public accountant or other qualified representative ("CPA"), or qualified attorney, to examine our books and records relating to the sale and exploitation of records embodying the Master (but excluding any books or records relating to the manufacture of records); provided, however, such examination shall take place at our offices during normal business hours, on reasonable written notice to us and Artist, not more frequently than once in any calendar year and at your sole cost and expense. Such examination may be conducted only once with respect to any particular statement and only within three (3) years after the date that such statement is sent to you. Upon Company's written request, you shall cause your CPA to deliver a copy of his or her audit report to us and Artist within thirty (30) days after such written request, at your sole cost and expense. For the avoidance of doubt, you shall not have the right to examine Record Company's books and records. The rights granted to you hereunder shall constitute your sole right to examine our books and records.

(d) In the event that we conduct an audit of Record Company's books and records, we shall credit your account with your appropriate pro-rata share of any royalties received by or credited to us as a result of such audit, which are specifically attributable to the Master, net of your share of the total costs and expenses of the audit concerned (i.e., that same proportion of the total costs and expenses that such credit to you bears to the total amount of royalties received by or credited to us in connection with the audit concerned). For purposes of this paragraph 7(d), your pro-rata share of royalties hereunder shall be determined by multiplying that portion of the total royalty payment received by or credited to us in connection with the audit concerned, which is specifically attributable to the Master, by the Fraction.

8. [Deleted].

9. Credit:

(a) We shall instruct and cause Record Company to accord you an appropriate credit on the packaging and liner notes (and wherever digital metadata permits) of records in all configurations derived from the Master, and on the back covers of singles of the Master, in substantially the following form:

Chinatown: “Produced by DJ AYO and NNTYSIX”

(b) We shall also instruct and cause Record Company to accord you such credit in all one-half (1/2) page or larger trade or consumer advertisements, and so-called “strip-ads”, placed by us or Record Company or under our or Record Company’s control, which relate solely to the Master, or the Album if other producers on the Album are so credited. Any such credit shall be subject to Record Company’s normal policies and restrictions. In the event that we or Record Company elect to have the Master re-mixed by a third-party following Delivery of the Master, or in the event that we otherwise materially alter the Master following your Delivery thereof (other for mixing or editing for timing purposes), we shall instruct Record Company to remove the credit afforded to you within a reasonable time (relating to prospective manufacturing runs only) following our receipt of your written notice requesting the same. For the avoidance of doubt, we shall make copies of such remixed versions of the Master available to you in order for you to determine if you wish for Producer’s credit to be removed. You shall have ten (10) business days from the date such remixed versions of the Master are made available to you to make such determination. In the event that you fail to make such determination within the aforementioned allotted time period, your silence shall be deemed acceptance. Our inadvertent, non-repetitive failure or Record Company’s failure to comply with any of the foregoing shall not be deemed a breach of this Agreement; provided, however, that following notice from you, we shall instruct and use reasonable efforts to cause Record Company to cure any such failure, on a prospective basis, with respect to future manufacturing runs.

10. Name / Likeness: You hereby grant to Record Company and us the non-exclusive right to use your professional name, likeness and biographical material (collectively, the “**ID Materials**”) solely in connection with the sale, advertising and promotion of any records derived from and exploitations of the Master. You shall have the right to approve the ID Materials; provided, however, that such consent shall not be unreasonably withheld or delayed, and shall be deemed given if you have not responded to us within seven (7) business days after our provision and written request therefor. Our inadvertent, non-repetitive failure to obtain your approval of the ID Materials shall not be deemed a breach hereof; provided, however, upon receipt of written notice from you regarding any such failure, we shall use reasonable efforts to cause Record Company to prospectively correct such failure and to obtain your approval on future runs.

11. Controlled Compositions:

(a) The Composition recorded or produced hereunder, and all other materials embodied on the Master hereunder, which are written or composed (either in whole or in part), or owned or controlled (either directly or indirectly), by you or your designee, or by any person or entity owned, controlled by, or affiliated with you or your designee that renders services in connection with the Master (the “**Controlled Compositions**”) are hereby mechanically licensed to us and Record Company upon the same terms and conditions as set forth in the Recording Agreement applicable to Controlled Compositions thereunder provided, however, that your mechanical royalty rate shall not be less than one hundred percent (100%) of the minimum statutory copyright royalty rate in the United States (without regard to playing time), and one hundred percent (100%) of the prevailing minimum statutory rate in Canada (or if there is no such rate, then one hundred percent (100%) of the prevailing minimum rate in Canada on a general basis).

(b) Without limiting the generality of the foregoing, you shall grant (and shall cause your

respective licensees, designees and affiliates to grant) to us and to Record Company a license to reproduce the Controlled Compositions in synchronization with and in time relation to visual images featuring Artist's performances solely in so-called non-commercial "music videos" (including, without limitation, any so-called "making of" / "behind the scenes" bonus DVD included or "bundled" with the Master or Album) on a royalty-free basis, and in so-called commercial "video programs," it being understood that you shall each be entitled to your pro-rata share of any royalties attributable to such commercial "music videos." Notwithstanding the foregoing, in the event Artist receives a publishing fee, royalty or other consideration for use of the Controlled Composition in commercial exploitations of the promotional "music videos", Producer shall be paid their pro-rata share of such consideration.

(c) You hereby acknowledge and agree, on behalf of yourself and each of your respective publishing designees, that you control the entire worldwide right, title and interest (including the copyright and any renewal right thereof) in the following percentages in and to the Composition embodied in the Master (exclusive of the conveyance of copyright in connection with any Proprietary Material):

"Chinatown":

DJ AYO	25.00%
Ntysix	25.00%
Polo G	50.00%

(d) You hereby acknowledge that you, Artist and any other writers (if any) (and the respective publishing designees of each of the foregoing) shall have the right to solely administer their respective interest in and to the Composition, throughout the world, during the full term of worldwide copyright, and shall have the sole and exclusive right to execute any and all licenses and agreements regarding the reproduction and exploitation of their respective interest in and to the Composition. Neither you nor any person or entity possessing any right, title or interest in the Composition (other than Artist and those deriving rights from his authorship thereof) including, without limitation, your past, present or future publishing or administration designees, shall issue any licenses for the reproduction of, preparation of works derived from, or distribution of copies of the Composition, without our consent.

12. Representation and Warranties:

(a) You, solely with respect to and on behalf of your individual contributions to the Master, hereby represent and warrant that: (i) you are free to enter into and perform this Agreement, and are not and shall not be under any disability, restriction or prohibition, contractual or otherwise, with respect to (A) your right to execute this Agreement, (B) your right to grant all of the rights granted to us hereunder, and (C) your right to fully perform each and every term and provision of this Agreement; (ii) neither we nor Artist shall be required to make any payment for, or in connection with, the rendition of your services or the acquisition, exercise or exploitation of rights by us pursuant to this Agreement, except as specifically provided for herein; (iii) the Master shall be free of all liens and encumbrances, and there shall be no claims, demands or actions of any nature, whether pending, threatened in writing or known to you (or any person engaged by you rendering services in connection with the Master), which have not been released prior to Delivery of the Master to us and Record Company; (iv) all materials furnished by you in connection with the Master or the Controlled Compositions shall be original and not infringe upon or violate the rights of any third-parties, including, without limitation, contractual rights, copyrights, trademarks, service marks and rights of privacy and publicity; (v) no selections recorded or to be recorded by you hereunder are subject to any re-recording restriction under any previous contract to which you may have been a party; and (vi) you shall not produce for any person or entity (other than us) master recordings embodying any musical compositions embodied on the Master for a period of three (3) years from the date of Delivery to us and Record Company of the Master, provided the Master is commercially released within eighteen (18) months

following the full execution of this Agreement. You hereby agree not to do or attempt to do, or suffer to be done, during or after the Term hereof, any act in derogation of or inconsistent with our rights hereunder.

(b) We hereby represent and warrant that: (i) we are free to enter and perform this Agreement, and are not under any disability, restriction or prohibition, contractual or otherwise, with respect to our right to execute this Agreement and our right to fully perform each and every term and provision hereof; (ii) solely to the extent of the individual contributions of us or Artist to the Master, none of the materials, ideas or other properties furnished or contributed by us or Artist, and embodied in the Master or the packaging or advertising for phonograph records hereunder, shall violate any law or infringe upon any common law or statutory rights of any party, including without limit, contractual rights, copyrights and rights of privacy; and (iii) all of our representations and warranties are true and correct upon execution hereof, and shall remain in effect for so long as we and Record Company, and their and our respective licensees, transferees or successors in interest, have any rights in or to the Master.

13. Sampling Representations and Warranties:

(a) Without limiting the foregoing, you, solely with respect to and on behalf of your individual contributions to the Master, hereby represent and warrant that all music and other materials furnished by you in connection with the Master (including, without limitation, so-called “interpolations” and “samples”), and all of your arrangements, compositions, ideas, designs and inventions relating thereto, are or shall be original or in the public domain throughout the world, or used with the consent of the original owner (“Owner”), and shall not infringe upon or violate any copyright or right of privacy, or any other right, of any person or entity. You shall not “sample,” “interpolate” or incorporate into the Master (collectively, “Sample”) or permit any other party furnished or engaged by you to Sample any copyrighted or other proprietary material (the “**Proprietary Material**”) belonging to any Owner, without having first (i) notified us of the Proprietary Material that you intend to use and the identity of the Owner thereof; (ii) obtained our and Record Company’s written authorization of such use prior to the mixing of the Master embodying such Proprietary Material; and (iii) secured from Owner, a written agreement in a form satisfactory to us and Record Company, indicating that we and Record Company (and each of our respective licensees) shall have the perpetual right to use such Proprietary Material embodied by you or a third party furnished by you, and to use or otherwise distribute or exploit the Master containing such Proprietary Material embodied by you or a third party furnished by you, for all purposes, in perpetuity, all either without any payment whatsoever to Owner or upon payment to Owner of a payment approved by us and Record Company in writing (collectively, the “**Clearance Efforts**”). Neither we nor Record Company shall have any obligation to approve or to make any such payment to Owner on your behalf, and our or Record Company’s approval of any such payment to Owner relating to the Clearance Efforts shall not constitute a waiver of any of our or Record Company’s right or remedies hereunder as relating thereto.

(b) In the event that any of the Master contains Proprietary Material embodied but not disclosed by you as set forth in paragraph 13(a) above (the “**Undisclosed Materials**”), or if you have not obtained and delivered to us and Record Company all licenses, permissions or other authorizations required hereunder, the Master shall not be deemed to be Delivered, regardless of the date upon which we or Record Company become aware of the existence of such Undisclosed Materials, and we and Record Company reserve the right to reject Delivery of the Master, notwithstanding the distribution or previous acceptance of the Master. You hereby represent and warrant that the Master shall not contain any Proprietary Material embodied solely by you, which has not been disclosed and licensed so as to allow us, Record Company, and each of our respective licensees to distribute the Master as fully contemplated hereunder.

(c) Notwithstanding anything to the contrary contained herein, we or Record Company shall undertake control of the Clearance Efforts for Proprietary Material embodied and disclosed by you or a third party furnished by you on the Master or otherwise included by Artist (“**Approved Materials**”). You

hereby acknowledge that any payments made by us or Record Company in connection with the Clearance Efforts of such Approved Materials shall, without limiting our or Record Company's other rights and remedies, be deemed "additional Recording Costs" and subject to the Approved Budget; provided, however, that (i) in the event that the Owner of any Approved Materials embodied by you requires, as a condition of granting the necessary clearances, that a portion of the copyright (or income interest) in a particular Controlled Composition be conveyed to such Owner, such conveyance shall proportionately reduce Artist and your (and your publisher's interest) in such Controlled Composition "off-the-top"; and (ii) in the event that the Owner of any Approved Material embodied by you or a third party furnished by you requires, as a condition of granting the necessary clearances, that a "per unit" royalty be paid to such Owner, you shall be proportionally responsible for payment of such royalty, and if such royalty is paid by us or Record Company on your behalf, such amounts may be deductible proportionally "off the top" of the all-in royalty due to Artist. You shall, upon our reasonable written request, execute, acknowledge and deliver to us any additional documents as we may deem reasonably necessary to effectuate our rights hereunder, and you hereby irrevocably grant to us the right as your limited attorney-in-fact solely to execute, acknowledge, deliver and record in the United States Copyright Office or elsewhere any such documents, should you fail to execute the same within seven (7) business days after our written request therefor, and we shall use commercially reasonable efforts to provide you with copies of any such documents at our sole, non-recoupable cost. You and we warrant that there are no Undisclosed Samples embodied in the Master.

14. Indemnification: You and we hereby agree to indemnify and hold each other and our respective successors, assigns, agents, companies and licensees harmless against any third-party claim, liability, actual, documented cost and expense (including reasonable outside attorneys' fees and actual legal costs) in connection with any claim which is inconsistent with any agreement, covenant, representation, or warranty made by you or us herein, which has been reduced to a final, non-appealable adverse judgment in a court of competent jurisdiction or has been settled with your or our prior written consent, which consent shall not be unreasonably withheld (it being understood that your or our consent shall be deemed given to any settlement not in excess of **Five Thousand Dollars (\$5,000)**). Notwithstanding the foregoing, if any party withholds consent to any settlement which any other party is willing to make, the foregoing indemnity shall apply and the non-withholding party may settle such claim in its sole discretion unless the withholding party promptly assumes all actual costs attributable to the defense of such claim, demand or action, including, without limitation, court costs, reasonable outside attorneys' fees, and direct expenses theretofore incurred by the non-withholding party in connection with said claim, demand or action, or furnish the non-withholding party with an acceptable bond guaranteeing such payment; provided, however, in the event that the withholding party assumes said actual costs, the non-withholding party shall nonetheless have the right to settle such claim, demand or action in their sole discretion without the withholding party's consent, provided that in such event, the foregoing indemnification shall not apply with respect thereto. Any party shall reimburse the other upon written demand for any documented, out-of-pocket payment made by them at any time after the date hereof including after the Term in respect of any claim, liability, damage or expense to which the foregoing indemnity applies. Upon the making or filing of any such claim, action or demand, we shall be entitled to withhold from any amounts (excluding mechanical royalties) payable hereunder such amounts as are related to the potential liability in issue; provided, however, if you post a bond acceptable to us in our sole reasonable discretion (with respect to amount, surety, etc.), then we shall release such withheld amounts subject to such bonding arrangements. If no action is commenced on such claim in a court of competent jurisdiction within twelve (12) months, any monies so withheld shall be released unless we anticipate upon reasonable grounds that legal action may be commenced, provided such monies shall be released within ninety (90) days in the event no legal action is commenced. You shall be promptly notified in writing of any such claim, action or demand and shall have the right, at your sole expense, to participate in the defense thereof with counsel of your choosing; provided, however, that our decision in connection with the defense of any such claim, action or demand shall be final.

15. Breach: No breach or alleged breach by us of any of our obligations hereunder shall entitle

you to recover damages or to affect your obligations hereunder, unless such material breach shall not have been remedied or cured within thirty (30) days (fifteen (15) days with respect to payment of monies due) following receipt by us of written notice specifying such breach or alleged breach and the details thereof. For the avoidance of doubt, in no event shall you have the right to seek or obtain injunctive relief against us or Record Company (or our or Record Company's respective assigns).

16. Force Majeure: Neither we nor Record Company shall be deemed in default hereunder if performance of our or Record Company's obligations hereunder is delayed or becomes impossible or commercially impractical, or if we or Record Company (or Record Company's distributor) are hampered in the recording, manufacture, distribution or sale of phonograph records or our or Record Company's (or Record Company's distributors') normal business operations become commercially impractical, by reason of any force majeure event not within our or Record Company's (or Record Company's distributor's) control or which we or Record Company (or Record Company's distributor) could not by reasonable diligence have avoided. Upon the happening of any such event, we, in addition to any other rights or remedies we may have hereunder, may elect, by notice to you, to suspend our obligations under this Agreement for the period of time that the effects of any such force majeure event continue; provided, however, that in the event that any such event applies to us alone and not the record industry in the United States generally, then the duration of such suspension shall in no event be longer than six (6) months.

17. Miscellaneous:

(a) All notices to be given by any party hereunder shall be in writing and shall be delivered by hand or by United States certified mail, postage prepaid, return receipt requested, to the address of the parties as first set forth above, until notice of a new address shall be duly given, except that statements and payments shall be sent to you to such addresses by regular mail, and shall be deemed delivered when mailed.

(b) You shall have the status of independent contractor hereunder, and except for paragraph 3 above, nothing herein shall constitute or contemplate you as our or Record Company's agent or employee.

(c) This Agreement embodies the entire understanding of the parties hereto with respect to the subject matter hereof, cannot be modified without an instrument in writing signed by all parties hereto, and shall be governed by and interpreted in accordance with the laws of the State of New York, without regard to any conflict of laws principles. You and we hereby acknowledge and agree that the exclusive jurisdiction and venue for any action, suit or proceeding based upon any matter, claim or controversy arising hereunder or relating hereto shall be in the state or federal courts located in the State and County of New York provided that notwithstanding anything to the contrary in this paragraph, if we or Artist, or Producer, is sued or joined (e.g. by joinder or impleader) in any other court or forum by a person, or entity other than Producer, or we or Artist, respectively, in respect of any matter that may give rise to a claim by or against Producer, or we or Artist, hereunder, Producer consents (and we shall cause Artist to consent) to the jurisdiction of such court or forum over any such claim asserted against Producer or we or Artist.

(d) Nothing contained in this Agreement shall obligate us or Record Company to manufacture, distribute, promote or sell phonograph records derived from any of the Master produced hereunder.

(e) We may assign our rights under this Agreement in whole or in part so long as we remain secondarily liable. You shall not be entitled to assign any of your rights or obligations hereunder without our prior written consent. Without limiting the generality of the foregoing, you shall have the right to assign your right to receive monies payable to you hereunder to not more than one (1) firm or corporation which is owned or controlled by you, of which Record Company shall have prior written notice. Your assignee, if any, shall not be a third-party beneficiary of this Agreement, and without limiting the generality of the foregoing, shall have no rights whatsoever (including, without limitation, audit rights) or remedies under

this Agreement or otherwise in connection with Record Company's failure to perform any of Record Company's obligations hereunder, and Record Company shall have the same rights against your assignee as Record Company would have against you but for such assignment, including any right of set-off. The invalidity or unenforceability of any provision hereof shall not affect the validity or enforceability of any other provision hereof. A waiver by any party hereto of any provision hereof shall not be deemed to be a waiver for the future. All remedies, rights, undertakings and obligations contained in this Agreement shall be cumulative and not in limitation of any other remedy, right, undertaking or obligation of any party.

(f) THE PARTIES HERETO HEREBY ACKNOWLEDGE AND AGREE THAT THEY UNDERSTAND THIS AGREEMENT AND HAVE BEEN ADVISED OF THE IMPORTANCE OF RETAINING AN INDEPENDENT ATTORNEY OF THEIR CHOICE TO REVIEW THIS AGREEMENT ON THEIR BEHALF. THE PARTIES HERETO HEREBY ACKNOWLEDGE THAT THEY HAVE HAD THE UNRESTRICTED OPPORTUNITY TO BE REPRESENTED BY AN INDEPENDENT ATTORNEY. IN THE EVENT OF ANY PARTY'S FAILURE TO OBTAIN AN INDEPENDENT ATTORNEY OR WAIVER THEREOF, SUCH PARTY HEREBY WARRANTS THAT SUCH PARTY SHALL NOT ATTEMPT TO USE SUCH FAILURE OR WAIVER AS A BASIS TO AVOID ANY OBLIGATIONS OF THIS AGREEMENT, OR TO INVALIDATE THIS AGREEMENT OR TO RENDER THIS AGREEMENT OR ANY PART THEREOF UNENFORCEABLE.

(g) This Agreement may be signed in any number of counterparts, each such counterpart being deemed to be an original instrument, but all of which shall constitute one and the same document. Delivery of a signed counterpart of a signature page to this Agreement by facsimile or other electronic means including email shall be effective as delivery of a manually executed counterpart of this Agreement.

IN WITNESS WHEREOF, if the foregoing accurately reflects your understanding of the agreement between you and us with respect to the subject matter hereof, please sign where indicated below.

[Signature Pages Follow]

Very truly yours,

TAURUS BARTLETT

By: Taurus Bartlett
Signature

AGREED AND ACCEPTED:

ANTHONY CATCHINGS-CURRIE

By: Anthony Catchings-Currie
Signature

EXHIBIT A

LETTER OF DIRECTION

TAURUS BARTLETT

(hereinafter “us”, “we” or “our”)
c/o The Zia Firm, PLLC
174 Fifth Ave Suite 505
New York, NY 10010
Attn: Adam Zia, Esq.

As of March 4, 2020

Columbia Records
A Division of Sony Music Entertainment
(“you” or “your”)
25 Madison Ave
New York, NY 10010

RE: Polo G – NNTYSIX

Gentlepersons:

1. We have engaged Anthony Catchings-Currie (“**Producer**”) pursuant to that agreement between Producer and us, dated as of March 4, 2020 (the “**Producer Agreement**”) to render Producer’s services in connection with one (1) master recording (the “**Master**”) of the composition titled “**Chinatown**” embodying the recorded performances of Taurus Bartlett p/k/a “Polo G” (“**Artist**”), delivered under the recording agreement between you and us. We request and authorize you, solely as an accommodation to us, to make payments, account to, and credit Producer, pursuant to the terms of the Producer Agreement.

2. For the avoidance of doubt, all monies becoming payable to Producer under this authorization shall be remitted to Producer at the following address or otherwise as Producer directs to you:

Anthony Catchings-Currie
p/k/a “NNTYSIX”
13049 South Escanaba Ave
Chicago, IL 60633

3. Your compliance with this authorization shall constitute an accommodation to us alone, and nothing herein shall vest in Producer rights as a beneficiary of or party to this instrument or any other agreement between you and us. All payments hereunder shall constitute payment to us. You shall have no liability by reason of any erroneous payment you may make or failure to comply with this authorization. We shall indemnify and hold you harmless against any claims asserted against you and any damages, losses or expenses incurred by you by reason of any such payment or otherwise in connection herewith.

4. The Master (excluding the underlying Compositions) shall be considered a “work made for hire” for you. The Master and the performances contained thereon, and records derived therefrom, shall from the inception of creation be entirely your property in perpetuity throughout the universe, under copyright and otherwise, free of any claim. You shall have the right to register the copyrights in the Master in your name or your designee’s name and to secure any and all renewals and extensions thereof. Without limiting the generality of the foregoing, you and we hereby assign to you all of our respective right and title

to the copyrights in perpetuity throughout the universe in and to such Master (excluding the underlying Compositions), records derived therefrom and any and all renewals and extensions of such copyrights.

[Signature Page Follows]

Very truly yours,

TAURUS BARTLETT

By: 

Signature

EXHIBIT B

PRODUCER ROYALTY CALCULATION

EXHIBIT C

SOUNDEXCHANGE